

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA
CASE NO. 17-61374-CV-WILLIAMS

SANDRA SYSYN,

Petitioner,

v.

RICKY D. DIXON,¹ SECRETARY,
FLORIDA DEPARTMENT OF CORRECTIONS,

Respondent.

ORDER

THIS MATTER is before the Court on Magistrate Judge Lisette M. Reid's Report and Recommendations (DE 15) ("**Report**") on the *pro se* Petition for Writ of Habeas Corpus (DE 1) ("**Petition**") filed pursuant to 28 U.S.C. § 2254 by Petitioner Sandra Sysyn ("**Petitioner**") challenging her conviction and sentence for first degree premeditated murder entered following a jury verdict in Broward County Circuit Court Case No. 97-12889CF10A. The Report recommends denying the Petition and certificate of appealability. (DE 15 at 74.)² Petitioner filed Objections (DE 25) to the Report challenging Judge Reid's rejection of claims 1, 2, and 3, but did not object to Judge Reid's rejection of claim 4. (*Id.* at 1–3.) After conducting a *de novo* review³ of Judge Reid's Report,

¹ Ricky D. Dixon is the Secretary for the Florida Department of Correction and is, therefore, substituted as the proper Respondent in this case.

² Unless otherwise noted, the page numbers referenced are those given by CM/ECF, the Court's electronic docketing system, on the upper right-hand side of the filing.

³ A district court may accept, reject, or modify a magistrate judge's report and recommendation. 28 U.S.C. § 636(b)(1). Those portions of a report to which objection is made are accorded *de novo* review, if those objections "[p]inpoint the specific findings

Petitioner's Objections (DE 25), the Petition (DE 1), Amendment (DE 8), the State's Response (DE 10), the relevant state court records and transcripts (DE 10-1; DE 10-2), Petitioner's Reply (DE 11),⁴ and applicable law, the Court **ADOPTS** the Report's conclusion that the Petition should be denied and no certificate of appealability granted.

Accordingly, it is **ORDERED AND ADJUDGED** that:

1. Judge Reid's recommendation in the Report that the Petition (DE 1) be **DENIED** is **ADOPTED**;
2. Petitioner's Objections are **OVERRULED**;
3. The Petition (DE 1) is **DENIED**;
4. Judgment in favor of the Respondent will be entered by way of a separate Order;

that the party disagrees with." *United States v. Schultz*, 565 F.3d 1353, 1360 (11th Cir. 2009); see also Fed. R. Civ. P. 72(b)(3). Any portions of a report to which no specific objection is made are reviewed only for clear error. Fed. R. Civ. P. 72. Although Rule 72 itself is silent on the standard of review, the Supreme Court has acknowledged that Congress's intent was to require *de novo* review only where objections have been properly filed—and not when neither party objects. See *Thomas v. Arn*, 474 U.S. 140, 150 (1985) ("It does not appear that Congress intended to require district court review of a magistrate [judge's] factual or legal conclusions, under a *de novo* or any other standard, when neither party objects to those findings."). Thus, the "[f]ailure to object to the magistrate [judge's] factual findings after notice precludes a later attack on these findings." *Lewis v. Smith*, 855 F.2d 736, 738 (11th Cir. 1988) (citing *Nettles v. Wainwright*, 677 F.2d 404, 410 (5th Cir. 1982)).

⁴ The Court takes judicial notice of its own records. See Fed. R. Evid. 201; *Nguyen v. United States*, 556 F.3d 1244, 1259 n.7 (11th Cir. 2009) (quoting *United States v. Glover*, 179 F.3d 1300, 1302 n.5 (11th Cir. 1999) ("A court may take judicial notice of its own records and the records of inferior courts.") (citation omitted)).

5. No certificate of appealability shall issue; and
6. All pending motions are **DENIED AS MOOT**.

DONE AND ORDERED in Chambers at Miami, Florida, this 21st day of March, 2024.


KATHLEEN M. WILLIAMS
UNITED STATES DISTRICT JUDGE

Copies furnished to:

Sandra Sysyn, *Pro Se*

DC#162841

Lowell Correctional Institution

Inmate Mail/Parcels

11120 N.W. Gainesville Road

Ocala, FL 34482

Melynda Layne Melear, Ass't Att'y Gen.

Attorney General Office

1515 N Flagler Drive, 9th Floor

West Palm Beach, FL 33401-3432

Email: crimappwpb@myfloridalegal.com